

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 825

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO MOTOR VEHICLES; PROVIDING LEGISLATIVE INTENT; AMENDING SECTION 49-402, IDAHO CODE, TO PROVIDE FOR A CERTAIN FEE AND TO MAKE A TECHNICAL CORRECTION; AMENDING CHAPTER 4, TITLE 49, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 49-416A, IDAHO CODE, TO ESTABLISH AMERICA250 LICENSE PLATES; AMENDING SECTION 49-450, IDAHO CODE, TO REVISE PROVISIONS REGARDING ADDITIONAL FEES FOR EACH PLATE ISSUED; AMENDING SECTION 67-7602B, IDAHO CODE, TO REVISE PROVISIONS REGARDING FUNDING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature, in recognition of Idaho's long-standing relationship with the Idaho Heritage Trust, to create a specific and limited exception to section 49-402C, Idaho Code, which prohibits new special license plates or special license plate programs for the benefit of any entity that is not the state of Idaho or an agency of the state of Idaho. This legislation discontinues a plate fee that was being paid to the Idaho Heritage Trust for the use of the red, white, and blue copyrighted design described in section 49-443(1), Idaho Code. Hereafter, the Idaho Heritage Trust will receive funds from the newly created America250 license plates.

SECTION 2. That Section 49-402, Idaho Code, be, and the same is hereby amended to read as follows:

49-402. ANNUAL REGISTRATION. (1) The annual fee for operating each pickup truck, each neighborhood electric vehicle and each other motor vehicle having a maximum gross weight not in excess of eight thousand (8,000) pounds and that complies with the federal motor vehicle safety standards as defined in section 49-107, Idaho Code, shall be:

Vehicles one (1) and two (2) years old	\$69.00
Vehicles three (3) and four (4) years old	\$57.00
Vehicles five (5) and six (6) years old	\$57.00
Vehicles seven (7) and eight (8) years old	\$45.00
Vehicles over eight (8) years old	\$45.00

There shall be twelve (12) registration periods, starting in January for holders of validation registration stickers numbered 1, and proceeding consecutively through December for holders of validation registration stickers numbered 12, each of which shall start on the first day of a calendar month and end on the last day of the twelfth month from the first day of the beginning month. Registration periods shall expire at midnight on the last day of the registration period in the year designated by the validation registration sticker. The numeral digit on the validation registration stickers shall, as does the registration card, fix the registration period

1 under the staggered registration system for the purpose of reregistration
2 and notice of expiration.

3 A vehicle that has once been registered for any of the above-designated
4 periods shall, upon reregistration, be registered for the period bearing the
5 same number, and the registration card shall show and be the exclusive proof
6 of the expiration date of registration and licensing. Vehicles may be ini-
7 tially registered for less than a twelve (12) month period, or for more than a
8 twelve (12) month period, and the fee prorated on a monthly basis if the frac-
9 tional registration tends to fulfill the purpose of the monthly series reg-
10 istration system.

11 (2) For all school buses operated either by a nonprofit, nonpublic
12 school or operated pursuant to a service contract with a school district for
13 transporting children to or from school or in connection with school-ap-
14 proved activities, the annual fee shall be twenty-four dollars (\$24.00) and
15 shall be subject to staggered registration for the purpose of reregistration
16 and notice of expiration.

17 (3) For all motorcycles and motor-driven cycles that comply with the
18 federal motor vehicle safety standards, operated on the public highways, the
19 annual fee shall be nineteen dollars (\$19.00) and shall be subject to stag-
20 gered registration for the purpose of reregistration and notice of expira-
21 tion.

22 (4) For operation of an all-terrain vehicle, utility type vehicle or
23 motorbike, excluding a motorbike with an engine displacement of fifty (50)
24 cubic centimeters or less, on city, county or highway district roads or
25 highways open to such use, a restricted vehicle license plate fee pursuant
26 to section 49-450, Idaho Code, shall be paid. In addition, the certifi-
27 cate of number fee specified in section 67-7122, Idaho Code, shall be paid
28 as provided in section 67-7122, Idaho Code. The certificate of number and
29 restricted vehicle license plate exemption provided in section 49-426(2),
30 Idaho Code, applies to all-terrain vehicles, utility type vehicles, motor-
31 bikes and motorcycles used for the purposes described in section 49-426(2),
32 Idaho Code. Nonresidents shall be allowed to purchase a restricted vehicle
33 license plate and validation sticker pursuant to section 67-7124, Idaho
34 Code, for an all-terrain vehicle, utility type vehicle, or motorbike.

35 (5) For all motor homes, the fee shall be as specified in subsection (1)
36 of this section and shall be in addition to the fees provided for in section
37 49-445, Idaho Code.

38 (6) Registration fees shall not be subject to refund.

39 (7) A financial institution or repossession service contracted to
40 a financial institution repossessing vehicles under the terms of a secu-
41 rity agreement shall move the vehicle from the place of repossession to the
42 financial institution's place of business on a repossession plate. The
43 repossession plate shall also be used for demonstrating the vehicle to a
44 prospective purchaser for a period not to exceed ninety-six (96) hours. The
45 registration fees for repossession plates shall be as required in subsection
46 (1) of this section for a vehicle one (1) and two (2) years old. All other
47 fees required under chapter 4, title 49, Idaho Code, shall be in addition to
48 the registration fee. The repossession plate shall be subject to staggered
49 registration for the purpose of reregistration and notice of expiration.

(8) A wrecker or towing business engaged in the process of towing motorized vehicles that have been wrecked, abandoned, salvaged or may be disabled may apply for a wrecker plate to be displayed on those vehicles being towed, provided the power unit is properly registered under this chapter. The registration fees for wrecker plates shall be as required in subsection (1) of this section for a vehicle one (1) and two (2) years old. All other fees required under chapter 4, title 49, Idaho Code, shall be in addition to the registration fee and shall be subject to staggered registration for the purpose of reregistration and notice of expiration.

(9) In addition to the annual registration fee in this section, there shall be an initial program fee of twenty-five dollars (\$25.00) and an annual program fee of fifteen dollars (\$15.00) for all special license plate programs for those license plates issued pursuant to sections 49-404A, 49-407, 49-408, 49-409, 49-414, 49-416, 49-418 and 49-418D, Idaho Code. For special plates issued pursuant to section 49-417E, Idaho Code, there shall be an initial program fee of seventy dollars (\$70.00) and an annual program fee of fifty dollars (\$50.00). For special plates issued pursuant to sections 49-406 and 49-406A, Idaho Code, there shall be an initial program fee of twenty-five dollars (\$25.00) but there shall be no annual renewal fee. For special plates issued pursuant to sections 49-415D, 49-416A, 49-417, 49-417A, 49-417B, 49-417C, 49-417D, 49-418A, 49-418B, 49-418C, 49-419, 49-419A, 49-419C, 49-419E, 49-420, 49-420A, 49-420B, 49-420C, 49-420D, 49-420E, 49-420J, 49-420K, 49-420L, 49-420M, 49-420N, 49-420O, 49-420P, 49-420Q, 49-420R, 49-420S, ~~and 49-420T~~, and ~~49-420T~~ 49-420U, Idaho Code, and unless otherwise expressly provided for in this chapter, any new special plate program effective on and after January 1, 2013, pursuant to section 49-402D, Idaho Code, there shall be an initial program fee of thirty-five dollars (\$35.00) and an annual program fee of twenty-five dollars (\$25.00). The fees contained in this subsection shall be applicable to all new special plate programs and shall be subject to staggered registration for the purpose of reregistration and notice of expiration. The initial program fee and the annual program fee shall be deposited in the state highway account and shall be used to fund the cost of administration of special license plate programs, unless otherwise specified by law.

(10) Any vehicle that does not meet federal motor vehicle safety standards shall not be registered and shall not be permitted to operate on public highways of the state, as defined in section 40-117, Idaho Code, unless otherwise specifically authorized.

(11) In addition to annual registration fees as provided in this section, registrants may pay a fee to purchase an Idaho state parks passport authorizing resident motor vehicle entry into all Idaho state parks. Registrants may pay the fee for a one (1) year or two (2) year period of time. The fee shall be ten dollars (\$10.00) for one (1) year and twenty dollars (\$20.00) for two (2) years. All fees collected pursuant to this subsection shall be deposited into the park and recreation fund and shall be subject to appropriation. Fees collected pursuant to this subsection shall not be considered a motor vehicle registration fee as provided in section 17, article VII of the constitution of the state of Idaho.

SECTION 3. That Chapter 4, Title 49, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 49-416A, Idaho Code, and to read as follows:

49-416A. AMERICA250 PLATES. (1) Notwithstanding the provisions of section 49-402C, Idaho Code, on and after July 1, 2026, any person who is the owner of a vehicle registered under the provisions of section 49-402, Idaho Code, or registered under any other section of law for which the purchase of special plates is allowed, may apply for and, upon department approval, receive special America250 license plates in lieu of regular license plates.

(2) The provisions of this section shall not apply to any vehicle with a registered maximum gross weight over twenty-six thousand (26,000) pounds. Availability of America250 license plates for other vehicles shall be subject to the rules, policies, and procedures of the department.

(3) In addition to the regular registration fee, the applicant shall be charged a fee of thirty-five dollars (\$35.00) for the initial issuance of the plates and twenty-five dollars (\$25.00) upon each succeeding annual registration. Ten dollars (\$10.00) of the initial fee and ten dollars (\$10.00) of the renewal fee shall be deposited in the state highway account and shall be used to fund the cost of the administration of this special license plate program. Twenty-five dollars (\$25.00) of each initial fee and fifteen dollars (\$15.00) of each renewal fee shall be transferred by the state treasurer to the Idaho heritage trust.

(4) Whenever title or interest in a vehicle registered under the provisions of this section is transferred or assigned, the owner may transfer the special plates to another vehicle upon payment of the required transfer fees. The owner may only display the plates on another vehicle upon receipt of the new registration from the department.

(5) The America250 license plate shall have a red, white, and blue background and display the text "America250" centered on the bottom. The design shall be acceptable to the Idaho heritage trust and shall be approved by the department. Initial costs of the plate program, including costs of plate design, shall be paid by the Idaho heritage trust.

(6) Sample America250 license plates may be purchased for a fee of thirty dollars (\$30.00), ten dollars (\$10.00) of which shall be deposited in the state highway account and twenty dollars (\$20.00) of which shall be transferred to the Idaho heritage trust.

SECTION 4. That Section 49-450, Idaho Code, be, and the same is hereby amended to read as follows:

49-450. ADDITIONAL FEE FOR EACH PLATE ISSUED. In addition to the vehicle registration fee provided by law, whenever any plate is issued for vehicle registration, there shall be charged a fee of three dollars and seventy-five cents (\$3.75) per plate, which shall be deposited into the plate manufacturing account created in section 49-450A, Idaho Code. The actual cost of producing and distributing license plates ~~and the fifty cents (50¢) per plate fee designated to the Idaho heritage trust for the use of the copyrighted design provided for in section 49-443(1), Idaho Code,~~ shall be paid from the plate manufacturing account. The difference between deposits into the account and disbursements out of the account not anticipated for future

1 production cost increases, shall be transferred by the state controller from
 2 the plate manufacturing account to the highway distribution account as es-
 3 tablished in section 40-701, Idaho Code, for apportionment as designated in
 4 that section. ~~Funds designated to the Idaho heritage trust shall be matched~~
 5 ~~with equal funds from other sources for funding projects designed to pre-~~
 6 ~~serve Idaho's historic resources.~~

7 SECTION 5. That Section 67-7602B, Idaho Code, be, and the same is hereby
 8 amended to read as follows:

9 67-7602B. FUNDING. The Idaho heritage trust shall receive funds col-
 10 lected ~~in section 49-450 pursuant to section 49-416A, Idaho Code, in the~~
 11 ~~amount of fifty cents (50¢) per plate for the use of the copyrighted design~~
 12 ~~provided in section 49-443(10), Idaho Code. The Idaho transportation de-~~
 13 ~~partment shall collect such funds and distribute them to the Idaho heritage~~
 14 ~~trust fund quarterly.~~ The role of the heritage trust is to accept proposals
 15 from the public requesting funds for heritage preservation projects. The
 16 proposals are evaluated on established criteria, and if in the opinion of
 17 the heritage trust they qualify, a grant may be awarded subject to the avail-
 18 ability of funds. The heritage trust shall ~~insure~~ ensure that the following
 19 occurs in respect to the management of funds:

20 (1) Funds earned from the use of the motor vehicle license plate ~~design~~
 21 pursuant to section 49-416A, Idaho Code, shall be deposited directly into
 22 the trust fund where it will earn interest that will be used for heritage
 23 preservation projects. Contributions from private ~~fund-raising~~ fundraising
 24 efforts may also be deposited to the trust fund.

25 (2) Only the interest earned from the trust fund shall be expended, and
 26 the trust fund shall remain as a permanent endowment generating income in
 27 perpetuity for heritage preservation.

28 (3) The Idaho heritage trust shall require project sponsors to match
 29 the funds granted for each project, so that no more than half the monetary
 30 support for any project shall come from the proceeds of the trust fund.

31 SECTION 6. An emergency existing therefor, which emergency is hereby
 32 declared to exist, this act shall be in full force and effect on and after
 33 July 1, 2026.